



DECISION

Complaint No. : POS/2077/2023/25/KHS

Name and address of the complainant : Mst. Naushaba Wd/o Khalil Ahmed Khan, Flat No. 400, Shan Plaza, Near Navy Flats – Hanifa Masjid Road, Agra Taj Colony, Lyari Town, Karachi.

Name of the Agency Complained against : Police / A.G. Sindh

Name & Designation of Investigating Officer : Syed Maqsood Haider, Director, Regional Office (South) Karachi.

Vetted by : Rehana G. Ali Memon,

Subject : Advisor-II.

DELAY IN PAYMENT OF DUES TOWARDS LEAVE ENCASHMENT IN RESPECT OF HUSBAND OF THE COMPLAINANT WHO EMBRACED SHAHADAT IN MARCH 2012.

THE COMPLAINT

Mst. Naushaba, widow of the late A.S.I. Khalil Ahmed Khan, filed the complaint on 13-03-2023, stating that her husband embraced martyrdom (shahadat) in the line of duty on 18-03-2012, whereas his official date of retirement has been recorded as 08-01-2021. She contends that despite the passage of considerable time, the leave encashment for 365 days has not been paid to her, which has caused substantial financial hardship, particularly in view of the prevailing inflationary conditions. She, therefore, sought the intervention of the Provincial Ombudsman Sindh for redressal of her grievance.

PROCEEDINGS:

2. After admission of the complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), as well as receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. In response, the Senior Superintendent of Police, District South, Karachi, had informed that leave encashment bill in respect of shaheed (Retired) ASI Khalil Ahmed Khan of District South Karachi was submitted in AG Sindh for pre-audit vide token No.214680 dated 21.04.2022 amounting to Rs.412800/- and the bill has not been passed with the remarks that the Shaheed is not entitled for leave encashment bill.
3. The views of Finance Department was sought on the issue of providing leave encashment to Shaheed ASI. The Finance Department vide letter No.FD(SR-II)15-45/2020 dated 10.09.2024 while quoting the Rule-22 of Sindh Civil Servants Leave Rules, 1986 "in case a civil servant dies while in service, lump sum payment of full pay upto 365 days out of the leave at his credit shall be made to his 'family' as defined for the purpose of pension". Hence the family of ASI Khalil Ahmed (Shaheed) is entitled to receive leave encashment in lieu of L.P.R.
4. The views of the Finance Department were forwarded to the S.S.P. South on 09.05.2025 for compliance.
5. The D.D.O (Senior Superintendent of Police), District south, Karachi, vide letter dated 16-05-2025, reported that the leave encashment bill pertaining to Shaheed (Retired) ASI K-955 Khalil Ahmed Khan was again submitted to the A.G. Sindh for pre-audit under Token No. 240964 dated 30-04-2025, amounting to Rs.421,560/- and the said bill has now been duly passed for payment towards leave encashment.

Cont'd on P/2...

6. The complainant also confirmed the receipt of Rs.421,560/-, as leave encashment of her late husband and expressed her gratitude to this office for addressing her grievance.

FINDINGS:

7. In view of the facts mentioned above, it is established that the delay in processing the leave encashment claim occurred due to a wrong understanding by the office of the Accountant General Sindh regarding the entitlement of Shaheed personnel. The matter has now been resolved and an amount of Rs.421,560/- has been duly paid to the complainant.

DECISION

8. In view of the above, I, in exercise of the powers vested in me under section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act 1991 (amended upto date), hereby dispose of the complaint as redressed.

Given under my hand and seal of office.



Sd /-

MUHAMMAD SOHAIL RAJPUT

Sitara-e-Imtiaz. PAS

Ombudsman, Sindh

25/11

Karachi, dated November, 2025

